



CHAPTER xxxiv.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Caledonian Railway. A.D. 1922.
[29th June 1922.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament : 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Caledonian Railway Order Confirmation Act 1922. Short title.

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SCHEDULE.

CALEDONIAN RAILWAY.

Provisional Order to confer further powers on the Caledonian Railway Company in relation to their undertaking to confirm a deviation of their Crieff Branch Railway to authorise the Company to acquire lands to extend the time for the completion of certain works and for the purchase of land to empower the Company and the Lanarkshire and Ayrshire Railway Company to hold and dispose of superfluous lands and for other purposes.

WHEREAS the Company have constructed at or near Gleneagles Station in the parish of Blackford in the county of Perth on lands acquired by them for the purpose a deviation of their Crieff Branch Railway and in connection with such deviation railway and by agreement with the county road board of the county council of the county of Perth a diversion of the public road leading from Blackford to Auchterarder and it is expedient that the construction of the said deviation railway and road diversion should be sanctioned and confirmed:

And whereas it is expedient that the Company should be authorised for the purposes of their undertaking to acquire the lands described in this Order:

And whereas it is expedient that the Company should be authorised to hold for the purposes of their undertaking the lands described in this Order which have already been acquired by them for those purposes:

And whereas it is expedient to empower the Company and the Lanarkshire and Ayrshire Railway Company to hold and dispose of certain lands acquired by those Companies for the purposes of their respective undertakings which may not be required for those purposes:

And whereas it is expedient that the time for the completion of the railways and works and for the purchase of the lands mentioned in this Order should be further extended as herein provided:

And whereas it is expedient that the other powers contained in this Order should be conferred on the Company : A.D. 1922.

And whereas plans of the lands which may be taken under the powers of this Order and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the principal sheriff clerks of the counties of Lanark and Wigtown and are hereinafter referred to as the deposited plans and book of reference :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited for all purposes as the Short title.
Caledonian Railway Order 1922.

2. The Lands Clauses Acts and Part II. (relating to extension of time) of the Railways Clauses Act 1863 as amended by any subsequent Act are except where and as expressly varied by this Order incorporated with this Order. Incorporation of Acts.

3. In this Order unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings and the expression “ the Company ” means the Caledonian Railway Company. Interpretation.

In the provisions of the Acts wholly or partially incorporated with this Order the following expressions have for the purposes of this Order the meanings hereinafter attributed to them (that is to say) :—

The expressions “ the Company ” “ the undertakers ” and “ the promoters of the undertaking ” mean the Company ;

The expression “ the railway and works ” in Part II. of the Railways Clauses Act 1863 incorporated with this Order means the railways and other works the time for the purchase of lands for or for the completion of which is hereby extended.

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Sanctioning
of deviation
of Crieff
Branch
Railway.

4.—(1) The deviation already constructed by the Company of their Crieff Branch Railway in the parish of Blackford in the county of Perth 4 furlongs 7·73 chains in length or thereabouts commencing by a junction with the Company's main line at a point thirty-three yards or thereabouts south of the original junction of the said Crieff Branch Railway with the said main line and terminating by a junction with the said Crieff Branch Railway at a point one hundred and eighty yards or thereabouts north of the centre line of the public road from Blackford to Auchterarder where the original Crieff Branch Railway crossed the said road on the level and all works and conveniences constructed by the Company in connection therewith are hereby legalised and may be maintained by the Company as and shall for all purposes including tolls rates and charges be deemed to be part of the said Crieff Branch Railway and the application of the funds which the Company have expended for the purposes of the said deviation railway is hereby sanctioned.

(2) The Company may abandon and discontinue the maintenance and use of that part of the said Crieff Branch Railway which lies between the points of commencement and termination of the said deviation railway and may subject to the provisions of the Lands Clauses Acts as modified by the provisions of the section of this Order of which the marginal note is "Power to Company to retain lease &c. superfluous lands" hold sell or dispose of or apply to the purposes of their undertaking the site and soil of the said portion of railway so abandoned and discontinued.

Sanctioning
diversion
of public
road.

5.—(1) The diversion already constructed by the Company of the public road from Blackford to Auchterarder in the county of Perth two furlongs or thereabouts in length commencing at a point one hundred and sixty-eight yards or thereabouts south of the point where the original Crieff Branch Railway crossed the said public road on the level and terminating at a point two hundred and seventy-two yards or thereabouts north of the said level crossing is hereby sanctioned and confirmed and the application of the funds which the Company have expended for the purposes of the said road diversion is hereby sanctioned.

(2) All public rights of way over or along the portion of the said public road situate between the points of commencement and termination of the said diversion thereof are hereby extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to mines lying under or near the railway appropriate and use for the purposes of their undertaking the site thereof so far as the same is bounded on both sides by the property of the Company.

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(3) The diverted portion of the said road shall form part of the said road and shall at all times hereafter be maintained as such by the central district committee of the county council of the county of Perth or other the authority for the time being liable to maintain the said road.

6. Subject to the provisions of this Order the Company may enter upon take and use for the purposes of their undertaking the lands hereinafter described and delineated on the deposited plans and described in the deposited book of reference (that is to say):—

Power to
Company
to acquire
certain
lands.

In the county of Lanark—

- (1) Certain lands in the parish of Dalziel on both sides of the Company's Wishaw Deviation Branch Railway north-west of Wishaw Central Station between the viaduct carrying the said railway over the South Calder Water and the boundary dividing the parishes of Dalziel and Cambusnethan:
- (2) Certain lands in the parish of Cambusnethan on the east side of the Company's Wishaw Deviation Branch Railway north-west of Wishaw Central Station between the boundary dividing the parishes of Dalziel and Cambusnethan and a point four hundred and seventy yards or thereabouts south-eastward thereof:
- (3) Certain lands in the parish of Cambusnethan and partly in the burgh of Motherwell and Wishaw on the east side of the Company's Wishaw Deviation Branch Railway north-west of Wishaw Central Station between a point two hundred and ninety yards or

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thereabouts north-westward of Heathery Road and a point sixty yards or thereabouts south-eastward of the said road :

- (4) Certain lands in the parish of Cambusnethan and partly in the burgh of Motherwell and Wishaw on the west side of the Company's Wishaw Deviation Branch Railway north-west of Wishaw Central Station between the boundary dividing the parishes of Dalziel and Cambusnethan and the Company's Shieldmuir and Wishaw Branch Railway :
- (5) Certain lands in the parish of Cambusnethan on the south side of the Company's main line from Glasgow to Carlisle between the east end of Wishaw South Station and the footpath giving access to Pather Iron and Steel Works :
- (6) Certain lands in the parish of Bothwell on either side of the Company's main line from Glasgow to Edinburgh (Uddingston to Holytown section) between the east end of Bells-hill Station and a point two hundred and fifteen yards or thereabouts east of the access road to Thorn Farm :
- (7) Certain lands in the parish of Old Monkland—
 - (a) On the north side of the Company's Rutherglen and Coatbridge Branch Railway between the east end of Carmyle Station and the road leading from London Road to the River Clyde ;
 - (b) On the north side of the Company's Rutherglen and Coatbridge Branch Railway north-east of Carmyle Station between a point forty yards or thereabouts east of the road leading from London Road to the River Clyde and a point four hundred and eighty yards or thereabouts east of the road leading from London Road to Kenmuirhill ;
 - (c) On the south side of the Company's Rutherglen and Coatbridge Branch Railway north-east of Carmyle Station between a point forty yards or thereabouts east of the road leading from London Road to the

River Clyde and a point six hundred and sixty-seven yards or thereabouts east of the road leading from London Road to Kenmuirhill; A.D. 1922.

(d) On the south side of the Company's Carmyle and Newton Branch Railway between the east end of Carmyle Station and the road leading from London Road to the River Clyde;

(e) On the north side of the Company's Carmyle and Newton Branch Railway east of Carmyle Station between the road leading from London Road to the River Clyde and a point seventy yards or thereabouts south-eastward therefrom;

(f) On the east side of the Company's Carmyle and Newton Branch Railway south-east of Carmyle Station between the branch railway leading to Kenmuir Colliery and the road between Kenmuir Colliery and the River Clyde;

(g) On both sides of the Company's Carmyle and Newton Branch Railway south-east of Carmyle Station between the last-mentioned road and the River Clyde:

(8) Certain lands in the parish of Cambuslang—

(a) On the north side of the Company's main line from Glasgow to Edinburgh (Clydesdale section) east of Cambuslang Station between a point one hundred and twenty yards or thereabouts east of Hamilton Road and the Company's railway from Kirkhill to Carmyle;

(b) On the south side of the Company's main line from Glasgow to Edinburgh (Clydesdale section) east of Cambuslang Station between a point ninety yards or thereabouts east of Hamilton Road and the branch railway to Gateside Colliery;

(c) On the north-east side of the Company's Carmyle and Newton Branch Railway between a point fifty yards or thereabouts south-east of the road leading from

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Cambuslang to Newton and a point one hundred and fifty yards or thereabouts west of the west end of Newton Station;

(d) On the south-west side of the Company's Carmyle and Newton Branch Railway between a point forty yards or thereabouts south-east of the road leading from Cambuslang to Newton and a point two hundred and seventy yards or thereabouts west of the west end of Newton Station;

(e) On the north side of the Company's main line from Glasgow to Edinburgh (Clydesdale section) between the disused branch railway to Westburn Colliery and a point three hundred yards or thereabouts west of the west end of Newton Station :

- (9) Certain lands in the parish of Blantyre on the south side of the Company's main line from Glasgow to Edinburgh (Clydesdale section) north-east of Newton Station between Haughhead Colliery signal box and the road to the west of Blantyreferme Colliery :
- (10) Certain lands in the parish of Shotts on the north side of the Company's main line from Glasgow to Edinburgh (Cleland and Midcalder section) south-east of Knownoblehill Colliery and west of Omoa Station :
- (11) Certain lands in the parish of Hamilton on both sides of the Company's Hamilton and Strathaven Branch Railway at Townhill to the north-west of Meikle Earnock Station between a point two hundred and ten yards or thereabouts north-west of the culvert carrying Earnock Burn under the said Hamilton and Strathaven Branch Railway and a point two hundred yards or thereabouts to the south-east of the said culvert :

In the county of Wigtown—

- (12) Certain lands in the parish of Inch on the north side of the Portpatrick and Wigtownshire Joint Railway east of Stranraer Station at Stranraer Harbour Junction signal box.

7. For the protection of the county council of the county of Lanark and the district committee of the middle ward of that county (who for their respective rights jurisdictions and interests under and in virtue of the Local Government (Scotland) Acts 1889 to 1908 the Roads and Bridges (Scotland) Act 1878 and enactments amending the same and the Public Health (Scotland) Acts 1897 to 1907 are in this section included in the expression "the county authorities") the following provisions (unless otherwise agreed upon between the Company and the county authorities) shall apply and have effect (that is to say):—

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For pro-
tection of
Lanark-
shire
county
authorities.

- (1) The acquisition by the Company of certain lands in the parishes of Cambuslang and Old Monkland as provided for by the section of this Order of which the marginal note is "Power to Company to acquire certain lands" shall not in any way affect the right and title of the county authorities in and to the lines of sewers belonging to the said authorities (including right of access to and along the lines of the said sewers for the purpose of maintaining renewing and if necessary enlarging the said sewers) which are carried through lands situated to the north and south of the Company's railways and which are shown on a plan signed in duplicate as relative hereto of date the twenty-second day of March one thousand nine hundred and twenty-two by John Scouler Steven solicitor for the Company and William Edward Whyte clerk to the district committee of the middle ward of the county of Lanark and if the Company at any time propose to erect embankments or any other works over the lines of the said sewers or in such close proximity to the sewers as in the opinion of the county authorities would endanger the same or affect the proper use thereof they shall in the option of the county authorities either strengthen the sewers and provide new means of access thereto in such a manner as the county authorities may specify or secure and convey to the county authorities new lines for the same satisfactory to the county authorities and at their own expense construct therein new sewers according to plans sections and specifica-

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tions to be approved of by the county authorities. In either event the Company shall pay to the county authorities any extra expense they may at any time be put to in connection with the said sewers or alterations of the same in so far as such extra expense may be due to the operations of the Company. In the event of new lines of sewers being provided the Company shall in addition at their own expense make all necessary connections between properties and subjects which may at the time of alteration have been connected to the existing sewers all to the satisfaction of the county authorities:

- (2) Any difference or dispute arising between the Company and the county authorities as to the exercise by the county authorities of their powers under this section shall be referred for final decision to a single arbiter to be mutually agreed on or failing agreement to be appointed by the sheriff of the county of Lanark on the application of either party.

Company
may hold
certain
lands
already
acquired.

8. The Company may hold and use for the purposes of their undertaking the following lands in the county of Perth which have been already acquired by them (that is to say):—

Certain lands in the said parish of Blackford at and in the vicinity of Gleneagles Station:—

(a) On the west side of the Company's Crieff Branch Railway and between the occupation overbridge at the south end of the said station and the road leading to Barns Farm from the public road from Blackford to Auchterarder;

(b) On the south-west side of the Company's Crieff Branch Railway between the said road to Barns Farm and a point near the west side of the said public road from Blackford to Auchterarder to the south of the bridge carrying the railway over that road;

(c) Forming the solum of and adjoining the said deviation of the Company's Crieff Branch Railway between the burn on the south side of the said Barns Farm road near the level crossing over the Company's main line and the said

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public road from Blackford to Auchterarder A.D. 1922.
including a strip on the western side of the last-
mentioned road; —

(d) On the east side of the Company's main
line between the said occupation overbridge and
the north end of the station :

And the expenditure of money by the Company in or
about the purchase of the said lands is hereby sanctioned
and confirmed.

For the purposes of section 3 of the Housing of the
Working Classes Act 1903 as applied to Scotland by the
Housing Town Planning &c. Act 1909 such lands shall be
deemed to have been acquired under the powers of this
section.

9. The Company may in connection with the acqui- Diversion of
sition of the lands in the parish of Bothwell in the county footpath.
of Lanark described in the section of this Order of which
the marginal note is "Power to Company to acquire
certain lands" and therein numbered (6) alter and divert
in the manner shown upon the deposited plans so much
of the public footpath known as Thorn Road as lies
between a point ninety-three yards or thereabouts north-
east of the junction of Belvidere Road with Motherwell
Road at the east end of Bellshill Station and Thorn
Farm and subject to the provisions of this Order may
stop up and cause to be discontinued as a footpath so
much of the existing footpath as will be rendered un-
necessary by the new portion of footpath so shown on
the said plans.

Such stopping up shall not take place until the
sheriff of the said county shall have certified that the
new portion of footpath has been completed to his
satisfaction and as from the date of the said certificate
all rights of way over or along the existing portion of
footpath shall be extinguished and the Company may
subject to the provisions of the Railways Clauses Con-
solidation (Scotland) Act 1845 with respect to mines
lying under or near the railway appropriate and use the
site thereof for the purposes of their undertaking so far
as the same is bounded on both sides thereof by the
property of the Company :

Provided that the Company shall make full com-
pensation to all parties interested in respect of any

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A.D. 1922. private rights of way extinguished by virtue of this section and such compensation shall be settled in manner prescribed by the Lands Clauses Acts with respect to the taking of lands otherwise than by agreement.

The diverted portion of the said footpath when completed shall be repaired and maintained by and at the expense of the parties on whom the expense of maintaining the adjoining portions of the said footpath now devolves.

Errors and omissions in plans and book of reference may be corrected by sheriff.

10. If there be any omission misstatement or erroneous description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to the sheriff of the county in which the said lands are situate for the correction thereof and if it appear to the sheriff that the omission misstatement or erroneous description arose from mistake he shall certify the same accordingly and he shall in his certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and the decision of the sheriff in such matter shall be final The certificate of the sheriff shall be deposited in the office of the principal sheriff clerk of the said county and a duplicate thereof shall also be deposited with the town clerk of the burgh or as the case may be the clerk of the parish council in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such sheriff clerk and town clerk or clerk of the parish council along with the other documents to which it relates and thereupon the deposited plans and book of reference shall be deemed to be corrected in accordance with the certificate and the Company may enter upon purchase take hold and use for the purposes of this Order any lands in accordance with such certificate.

Period for compulsory purchase of lands.

11. The powers for the compulsory purchase of lands under this Order shall cease after the expiration of three years from the passing of the Act confirming this Order.

Persons under disability may

12. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Order

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grant to the Company any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and feu duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid.

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grant servi-
tudes &c.

13. All private rights of way or servitudes in over or across any lands which shall under the powers of this Order be acquired compulsorily shall as from the date of such acquisition be extinguished. Provided that the Company shall make full compensation to all parties interested in respect of any such rights or servitudes and such compensation shall be settled in manner provided by the Lands Clauses Acts with respect to the taking of lands otherwise than by agreement.

As to
private
rights of
way over
lands
taken com-
pulsorily.

14. The Company may make and maintain in or through any of the lands referred to in the section of this Order the marginal note of which is "Power to Company to acquire certain lands" such roads or ways for the accommodation of the owners or occupiers of such lands or of the adjoining lands and in substitution for any existing roads or ways in or through such lands as the Company may think fit or as may be agreed upon between the Company and any such owner or occupier.

Power to
make roads.

15. And whereas it may happen that portions only of the houses or other buildings or manufactories shown on the deposited plans may be sufficient for the purposes of this Order and that such portions may be severed from the remainder of the said properties without material detriment thereto. Therefore notwithstanding section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 the owners of and other persons interested in any of the properties described in the schedule to this Order and whereof parts only may be required for the purposes of this Order may (if the same can in the opinion of the jury arbiters or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of the premises without material detriment thereto) be required to sell and convey to the Company the portions only of the premises so

Owners
may be
required to
sell parts
only of
certain
properties.

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A.D. 1922. required without the Company being obliged or compellable to purchase the whole or any greater portion thereof the Company paying for the portions taken by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise. Provided that if in any case in the opinion of the jury arbiters or other authority as aforesaid any such portions cannot be severed from the remainder of such property without material detriment thereto the Company may at any time within one month after the date of the final decision of such jury arbiters or other authority withdraw their notice to treat for the portions required by them and thereupon they shall pay to the owners of and other parties interested in the property in respect of any portions of which they have given notice to treat all loss and damage sustained and all costs charges and expenses (as the same shall be taxed as between solicitor and client) reasonably incurred by them in consequence of such notice. Provided also that nothing in this section contained shall be held as determining whether the properties described in the said schedule are or are not subject to the provisions of section 90 of the Lands Clauses Consolidation (Scotland) Act 1845.

Single
arbiter.

16. In all cases of disputed purchase money or compensation arising under this Order in respect of land to be taken compulsorily or otherwise which fall to be determined under the provisions of the Lands Clauses Acts it shall unless the Company and the other party or parties to the dispute concur in the appointment of a single arbiter in terms of such Acts be in the power of the Company or such other party or parties to apply to the Secretary for Scotland to appoint a single arbiter to determine the purchase money or compensation to be paid and it shall not be competent thereafter to have the same determined by arbiters oversmen sheriff or jury acting under the last-mentioned Acts. The said arbiter upon appointment shall be deemed to be a sole arbiter within the meaning of the Lands Clauses Acts and the provisions of those Acts with regard to arbitration shall apply accordingly and the arbiter shall notwithstanding anything contained in the said Acts determine the amount of expenses in the arbitration and such determination shall be final. The remuneration of the said arbiter shall failing agreement be fixed by the Secretary for Scotland.

17. The tribunal to whom any question of disputed purchase money or compensation under this Order is referred shall if so required by the Company award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Company by the claimant giving sufficient particulars and in sufficient time to enable the Company to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Company have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant:

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Costs of
arbitration
in certain
cases.

Provided that it shall be lawful for the Lord Ordinary on the Bills or the sheriff of the county in which the lands are situate in respect of which the claim has arisen to permit any claimant after seven days' notice to the Company to amend the statement in writing of the claim delivered by him to the Company in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge or sheriff after hearing the Company if they object to the amendment and such amendment shall be subject to such terms enabling the Company to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to the costs of the inquiry and otherwise as to such judge or sheriff may seem just and proper under all the circumstances of the case:

Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation (Scotland) Act 1845 either contained or was endorsed with a notice of the effect of this section.

18. The period now limited by an Order of the Minister of Transport for the completion of the dredging deepening and improvement of the navigation of the river Carron authorised by the Caledonian Railway (Grangemouth Harbour) Act 1876 is hereby extended for nine years from the expiration of that period that is until the twenty-seventh day of June one thousand nine hundred and thirty-two.

Extending
period for
completion
of dredging
&c. under
Act of 1876.

19. The period now limited by an Order of the Minister of Transport for the completion of Railway No. 3

Extending
period for
completion

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A.D. 1922. authorised by the Caledonian Railway (General Powers) Act 1899 is hereby extended for two years from the expiration of that period that is until the ninth day of August one thousand nine hundred and twenty-five and the sections of the above Act which relate to the period for the completion of the said railway and to the penalties exigible in the event of the same not being completed within the period thereby limited for the completion thereof shall be read and construed as if the period for such completion referred to in those sections did not expire until the expiration of the extended period hereby limited.

Extending period for completion of Railway (Work No. 1) under Order of 1907. 20. The period now limited by an Order of the Minister of Transport for the completion of the Railway (Work No. 1) authorised by the Caledonian Railway Order 1907 is hereby extended for two years from the expiration of that period that is until the nineteenth day of May one thousand nine hundred and twenty-five and the sections of the said Order of 1907 which relate to the period for the completion of the said railway and to the penalties exigible in the event of the same not being completed within the period thereby limited for the completion thereof shall be read and construed as if the period for such completion did not expire until the expiration of the extended period hereby limited.

Extending period for completion of bridge lengthening (Work No. 1) under Order of 1910. 21. The period now limited by an Order of the Minister of Transport for the completion of the bridge lengthening (Work No. 1) authorised by the Caledonian Railway Order 1910 is hereby extended for two years from the expiration of that period that is until the twenty-sixth day of July one thousand nine hundred and twenty-five.

Extending period for completion of bridge widening under Order of 1913. 22. The period now limited by an Order of the Minister of Transport for the completion of the bridge widening at Beattock authorised by the Caledonian Railway Order 1913 is hereby extended for two years from the expiration of that period that is until the fourth day of July one thousand nine hundred and twenty-five.

Extension of time for purchase of certain lands under Orders of 23.—(1) The powers granted by the Caledonian Railway Order 1907 as now extended by an Order of the Minister of Transport for the compulsory purchase and taking of the lands in the parishes of Bothwell Crawford and Wandell and Lamington in the county of Lanark

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the parish of Currie in the county of Edinburgh the parishes of Stirling and Saint Ninians and royal burgh of Stirling in the county of Stirling and the parish of Comrie in the county of Perth described in section 6 of the said Order of 1907 and therein numbered respectively (2) (3) (9) (11) and (13) are hereby extended and may be exercised at any time within but shall cease after the expiration of two years from the nineteenth day of May one thousand nine hundred and twenty-three.

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1907 1910
 and 1913.

(2) The powers granted by the Caledonian Railway Order 1910 as now extended by an Order of the Minister of Transport for the compulsory purchase and taking of the lands in the parish of Govan and the city and royal burgh of Glasgow the parish of Rutherglen and royal burgh of Rutherglen the parish of Old Monkland and burgh of Coatbridge and the parish of Hamilton all in the county of Lanark described in section 5 of the said Order of 1910 and therein numbered respectively (1) (2) (3) (4) (6) and (7) are hereby extended and may be exercised at any time within but shall cease after the expiration of two years from the twenty-sixth day of July one thousand nine hundred and twenty-three.

(3) The powers granted by the Caledonian Railway Order 1913 as now extended by an Order of the Minister of Transport for the compulsory purchase and taking of the lands in the parish of Kirkpatrick-Juxta in the county of Dumfries described and numbered (1) in section 5 of the said Order of 1913 are hereby extended and may be exercised by the Company within but shall cease after the expiration of two years from the fourth day of July one thousand nine hundred and twenty-three.

24. The period within which the Company are required by section 26 (For the protection of the corporation of Glasgow) of the Caledonian Railway Act 1900 to carry out the street improvements and works referred to in that section as now extended by an Order of the Minister of Transport is hereby further extended for four years from the expiration of the said period that is until the sixth day of August one thousand nine hundred and twenty-seven.

Extending
 period for
 completion
 of certain
 works under
 Act of 1900.

25. And whereas lands have from time to time been purchased or acquired by the Company adjoining or near to railways or stations belonging to the Company which

Power to
 Company
 to retain
 lease &c.

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—
superfluous
lands.

may not be immediately required for the purposes of their undertaking and it is expedient that further powers should be conferred upon the Company with respect to such lands. Therefore notwithstanding anything contained in the Lands Clauses Consolidation (Scotland) Act 1845 or in any Act or Order relating to the Company or to any company whose undertaking is vested in the Company with which the first mentioned Act is incorporated the Company shall not be required to sell or dispose of any such lands which may not be required for such purposes but may retain hold or use or may lease or otherwise dispose of the same on such terms as the Company may think fit.

Power to
Ayrshire
Company
to retain
lease &c.
superfluous
lands.

26. And whereas lands have from time to time been purchased or acquired by the Lanarkshire and Ayrshire Railway Company (hereinafter referred to as "the Ayrshire Company") adjoining or near to railways or stations belonging to the Ayrshire Company which may not be immediately required for the purposes of their undertaking and it is expedient that further powers should be conferred upon the Ayrshire Company with respect to such lands. Therefore notwithstanding anything contained in the Lands Clauses Consolidation (Scotland) Act 1845 or in any Act or Order relating to the Ayrshire Company with which the first mentioned Act is incorporated the Ayrshire Company shall not be required to sell or dispose of any such lands which may not be required for such purposes but may retain hold or use or may lease or otherwise dispose of the same on such terms as the Ayrshire Company may think fit.

Application
of funds of
Company.

27. The Company may apply towards the purposes of this Order to which capital is properly applicable any capital or funds belonging to or authorised to be raised by them which may not be required for the purposes for which the same were authorised to be raised or directed to be applied.

For pro-
tection of
Postmaster-
General.

28. Nothing in this Order shall be deemed to impose upon the Postmaster-General the obligation of transmitting under the provisions of the Telegraph Act 1868 or any agreement between the Postmaster-General and the Company made in pursuance thereof any larger number of telegraphic messages of the Company free of charge than he would have been bound to transmit had this Order not become law.

[12 & 13 GEO. 5.] *Caledonian Railway* · [Ch. xxxiv.]
Order Confirmation Act, 1922.

29. Nothing in this Order contained shall exempt the Company or the Ayrshire Company from the provisions of any general Act relating to railways or the better or more impartial audit of the accounts of railway companies passed before or after the passing of the Act confirming this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the said Companies respectively.

A.D. 1922.
Provision
as to
general
railway
Acts.

30. All costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Company.

Costs of
Order.

The SCHEDULE referred to in the foregoing Order.

HOUSES BUILDINGS OR MANUFACTORIES PARTS ONLY OF WHICH MAY
BE TAKEN.

Parish:	No. on Deposited Plans.
LAND AT WISHAW.	
Dalziel - - - - -	18 19.
Cambusnethan (burgh of Mother- well and Wishaw) - - -	1 2.
LAND AT WISHAW	SOUTH STATION
Cambusnethan - - - - -	2.
LAND AT BELLS HILL STATION.	
Bothwell - - - - -	2 5 13 14 15 16.
LAND AT CARMYLE.	
Old Monkland - - - - -	16 17.

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